

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

Present:

Justice Qazi Faez Isa, CJ
Justice Syed Mansoor Ali Shah
Justice Jamal Khan Mandokhail
Justice Athar Minallah
Justice Musarrat Hilali
Justice Naeem Akhtar Afghan

Suo Moto Case No. 1 of 2024

[In the matter of letter dated 25 March 2024 of the Six Judges of the Islamabad High Court]

AND

CMA Nos. 3475 and 3635 of 2024 in SMC No. 1/2024

[In the matter of letter dated 25 March 2024 of the Six Judges of the Islamabad High Court]

AND

Constitution Petition No. 9 to 20 of 2024

Mian Dawood Advocate High Court, Lahore.
(In Const. P. No. 9/2024)

*Lahore High Court Bar Association through
its President Asad Manzoor Butt, Advocate.*
(In Const. P. No. 10/2024)

Mr. Aitzaz Ahsan.
(In Const. P. No. 11/2024)

*Islamabad High Court Bar Association, Islamabad
through its President.*
(In Const. P. No. 12/2024)

*Balochistan High Court Bar Association, Quetta
Through its President.*
(In Const. P. Nos. 13 and 14/2024)

*Shahbaz Ali Khan Khosa, Advocate Supreme Court
Additional Secretary, Supreme Court Bar Association,
Islamabad and anther.*
(In Const. P. No. 15/2024)

Islamabad Bar Association through its President
Raja Muhammad Shakeel Abbasi, Advocate High Court
And General Secretary Hassan Javed, Islamabad.
(In Const. P. No. 16/2024)

Karachi Bar Association through its President and
General Secretary, Karachi.
(In Const. P. No. 17/2024)

Sindh High Court Bar Association, Karachi.
(In Const. P. No. 18/2024)

Khudayar Khan Mohla, Advocate High Court,
Ex-President Press Association of Supreme Court
Of Pakistan, Islamabad.
(In Const. P. No. 19/2024)

Taimur Inayat Malik, Advocate High Court, Islamabad.
(In Const. P. No. 20/2024)

... Petitioners

Versus

Federation of Pakistan through Secretary, M/o Law
and Justice, Islamabad and another.

Federation of Pakistan through Secretary Cabinet Division,
Islamabad and another.

... Respondents

In Attendance:

In SMC No. 1/2024:

- | | | |
|--|---|--|
| For the Federation | : | Mr. Mansoor Usman Awan,
Attorney-General for Pakistan.
Ch. Aamir Rehman,
Additional Attorney-General for Pakistan.
Mr. Javed Iqbal Weins,
Additional Attorney-General for Pakistan. |
| For PBC | : | Mr. Riazat Ali Sahar, ASC.
Syed Rifaqat Hussain Shah, AOR. |
| On Court’s Notice | : | Mr. M. Shahzad Shaukat, ASC
President, SCBA. |
| For the Applicant
(In CMA. 3475/24) | : | Mr. Abid S. Zuberi, ASC. |
| For the Applicant
(In CMA. 3635/24) | : | Mr. Shahbaz Ali Khosa, ASC. |

- For the Petitioners : In-person.
(In Const.P. 9/24)
- Mr. Hamid Khan, Sr. ASC.
Mr. M. Ajmal Ghaffar Toor, ASC.
Mr. M. Waqar Rana, ASC.
(In Const.P. 10/24)
- Khawaja Ahmad Hosain, ASC.
Mr. Aitzaz Ahsan, Petitioner.
(In Const.P. 11/24)
- Syed Ahmad Hassan Shah, ASC.
(In Const.P. 12/24)
- Mr. Hamid Khan, Sr. ASC.
Mr. M. Ajmal Ghaffar Toor, ASC.
(In Const.Ps. 13 and 14/24)
- Mr. Shahbaz Ali Khan Khosa, ASC.
Mr. Umar Hayad Sindhu,
Vice President, SCBA.
(In Const.P. 15/24)
- Mr. Salahuddin Ahmed, ASC.
Syed Rifaqat Hussain Shah, AOR.
(In Const.Ps. 16 and 17/24)
- Mr. Rehan Aziz Malik, ASC.
President, SHCBA.
(Through video-link from Karachi)
(In Const.P. 18/24)
- Dr. G.M. Chaudhry, ASC.
a/w Petitioner.
(In Const.P. 19/24)
- In-person.
(In Const.P. 20/24)
- For Govt. of Sindh : Mr. Hassan Akbar, Advocate-General, Sindh.
(Through video-link from Karachi)
- For Govt. of Balochistan : Mr. Ayaz Swati,
Additional Advocate-General, Balochistan.
- For Govt. of KPK : Mr. Sultan Mazhar Sher Khan,
Additional Advocate-General, KP.
- For Govt. of Punjab : Nemo.
- For Islamabad Capital Territory : Mr. Ayyaz Shaukat,
Advocate-General, Islamabad.

On behalf of Balochistan
Bar Association : Mr. Munir Ahmed Kakar, ASC.
Mr. M. Ayub Tareen, ASC.
(Through video-link from Quetta)

Date of Hearing : 30.04.2024.

ORDER

Pursuant to the order dated 3 April 2024 the five High Courts have submitted their respective proposals which were read out by the learned Attorney-General for Pakistan ('AG'). Proposals were also sought from the Pakistan Bar Council ('PBC') and the Supreme Court Bar Association ('SCBA'). PBC has submitted its proposals and the Vice President and Additional Secretary of SCBA state that since a meeting of the SCBA had not taken place they will be submitting their proposals before the next date of hearing.

2. Few petitions and a number of applications have been filed by other bar councils and bar associations seeking to be joined as parties to these proceedings. Others too have filed similar applications. However, we will only entertain the same to the extent of considering proposals made therein.

3. It would be appropriate and helpful if bar councils and bar associations come together and preferably file one document containing their proposals. However, if agreement cannot be reached amongst them they may file separate proposals.

4. If any bar council or association wants to obtain copies of the proposals submitted by the High Courts they may obtain the same from the office.

5. The learned AG may also submit proposals on behalf of the Federation. With regard to the allegations levelled in the letter of the six Hon'ble Judges of the Islamabad High Court against the Federation, or any agency under the Federal Government, responses thereto be submitted through the learned AG before the next date of hearing.

6. To come up on Tuesday, 7 May 2024 at 11.30 am.

Qazi Faez Isa, CJ.

Syed Mansoor Ali Shah J.

Jamal Khan Mandokhail, J.

The Federal Government has to submit its response to the grave status of interference by the executive as highlighted by all the High Courts. This is the most serious and grave undermining of the independence of judiciary which cannot be trivialised. The Federal Government controls the Intelligence Agencies and it is for it to explain its position before this Court. The buck stops with the Federal Government. The High Courts have indicated that the phenomenon has existed till recently.

Athar Minallah, J.

Musarrat Hilali, J.

Naeem Akhtar Afghan, J.

Islamabad:
30.04.2024
(M. Tauseef)